

22STCV17085 22STCV17085

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Case Number: 22STCV17085 Hearing Date: June 30, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

ISRAEL A. ENRIQUEZ,

Plaintiff,

vs.

AMERICAN HONDA MOTOR CO., INC.,

Defendants.

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CASE NO.: 22STCV17085

[TENTATIVE] ORDER GRANTING IN PART PLAINTIFF'S
MOTION FOR ATTORNEY FEES, COSTS, AND EXPENSES

Dept. 506

8:30 a.m.

June 30, 2026

Plaintiff

Israel A. Enriquez and Defendant American Honda Motor Co., Inc. have reached a settlement in this Song-Beverly action. On August 20, 2025, Plaintiff filed a motion for attorney fees and a memorandum of costs.

Defendant's

evidentiary objections are overruled.

DISCUSSION

As

the prevailing party, Plaintiff is entitled to an award of reasonable attorney fees and expenses. (Civ. Code, § 1794, subd. (d).) Plaintiff requests a total of \$34,283.96, consisting of \$31,666.50 attorney fees (\$27,666.50 billed plus \$4,000.00 for this motion), and \$2,617.46 in costs and expenses. (Motion at p. ii.)

A. Attorney Fees

California

courts apply the “lodestar” approach to determine what attorney fees are reasonable. (See, e.g., *Holguin v. DISH Network LLC*

(2014) 229 Cal.App.4th 1310, 1332.) This

inquiry “begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.”

(*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) From there, the “lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided.” (Ibid.) Relevant factors include “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking fees has the burden of documenting the appropriate hours expended and hourly rates. (*City of Colton v. Singletary* (2012) 206 Cal.App.4th 751, 784.)

Plaintiff

provides a copy of counsel’s billing records, which show 75.9 hours billed and anticipatorily billed, for a total of \$27,666.50 in fees.

(Jacobson Decl., Ex. 6.) Plaintiff’s

counsel charges hourly rates of \$350, \$395, or \$400. (Jacobson Decl. ¶¶ 12-25; see Jacobson Decl., Ex. 6.)

Defendant

argues that the hourly rates are “very high especially for a simple Lemon Law case.” (Opposition at p. 12.) According to Defendant, “plaintiff lemon law attorneys

‘charge’ whatever they want, because there is no market for their services (i.e.

they never collect from their clients at the stated rates).” (Id. at p. 11.) Defendant urges the Court to “not accept plaintiff’s counsel’s self-vouching for their hourly rates in these simple lemon law cases. While other attorneys in the industry are cited as ‘charging’ the ‘same’ high rates or ‘higher’ rates of plaintiff’s counsel here

claim, the plain truth is that plaintiff lemon law attorneys charge whatever they

can get away with because there is very little accountability.” (Id. at p. 11.) Defendant quotes an article by a “learned commentator”

accusing most plaintiff attorneys of always characterizing their work as the best in the community and their cases as the most complex. (Id. at pp. 11-12.)

The

Court agrees that “the trial judge is in the best position to determine the reasonableness of a request for attorneys’ fees.” (Opposition at p. 11.) And in this Court’s experience, Plaintiff’s rates are reasonable for attorneys in Los Angeles specializing in these

types of cases. But because Plaintiff's counsel are experienced with Song-Beverly litigation, they should be more efficient in those types of cases than less experienced attorneys.

Defendant

states that it "carefully analyzed plaintiff's billing entries, and notes various billing entries and their issues as set forth in its attorney declaration, paragraph 7, attached hereto." (Opposition at p. 11.) Including detailed objections to time entries only in counsel's declaration is an apparent attempt to bypass the 15-page limit for an opposition. (See Reply at pp. 1, 7; see also California Rules of Court, rule 3.1113(d).)

"In

challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice."

(Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488.) The specific challenges in the body of the Opposition include discovery responses, use of recycled template filings, and duplicate work performed by multiple attorneys. (Opposition at pp. 16, 18.)

The

number of staff on the case indicates some inefficiencies. With so many attorneys working on the case, there were some inefficiencies when each new attorney needed to review the case file to learn the case. The billing records also reflect inefficiencies in the number of hours for certain tasks, such as drafting boilerplate discovery requests and motions.

The Court has seen many similar actions brought by Plaintiff's counsel. The complaints, discovery issues, and fee motions are similar across the cases brought by Plaintiff's counsel. Therefore, less time is needed to draft these documents, and some deduction is warranted.

(See Opposition at pp. 13-14.) The

Court will apply a slight negative multiplier of 0.95 (5% reduction) due to the inefficiencies caused by overstaffing and excessive billing for boilerplate items. (Cash v. County of Los Angeles (2025) 111 Cal.App.5th 741, 749.)

Considering

the type of case, complexity of the case, length of litigation, and the record as a whole, the Court concludes that a reasonable amount of attorney fees is \$30,083.18 (\$31,666.50 minus \$1,583.32).

B. Costs and Expenses

Defendant

argues that many costs are not allowable under Code of Civil Procedure section 1033.5, and all costs should be stricken because Plaintiff did not file a memorandum of costs. (Opposition at pp. 19-20.)

A

prevailing plaintiff in a Song-Beverly action may recover all “costs and expenses . . . determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Code Civ. Proc., § 1794, subd. (d).) “[I]t is clear the Legislature intended the word ‘expenses’ to cover items not included in the detailed statutory definition of ‘costs.’” (Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137.)

Plaintiff's

costs and expenses are reasonable, and Defendant's opposition does not provide any grounds to strike the costs and expenses. (See Reply at pp. 8-9.)

CONCLUSION

The

motion for attorney fees and costs is GRANTED IN PART. The Court awards Plaintiff \$30,083.18 in attorney fees and \$2,617.46 in costs and expenses.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 30th day of June 2026

Hon. Thomas D. Long

Judge of the Superior
Court